

e-Campsis

END USER LICENSE AGREEMENT

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1. Definitions

The following capitalised terms have the meanings set out below:

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"Proprietary Components"	The graphical user interface, simulation workflows, design of the integration layer, configuration logic, and all other elements of the Software that are not Open-Source Components, and which constitute the Licensors' intellectual property.
"Documentation"	All user manuals, technical guides, tutorials, and help materials provided with the Software.
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The Software operates within the Licensee's local computing environment and relies on: third-party software (including R and associated packages), system configuration and user-defined models and scripts. Calvagone does not guarantee: compatibility with all environments, correct installation or execution of dependencies, reproducibility of results across systems.

Open-Source components, that are protected by the general public license (GPL) terms are not part of, nor are they distributed with the Software and must be obtained and installed separately by the user. The Company does not sublicense, redistribute, or assume responsibility for Open-Source Components.

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5.4 Nothing in this Agreement restricts Licensee from exercising any rights expressly permitted under applicable law, including rights related to interoperability, nor does it apply to Open-Source Components, which remain governed by their respective licenses.

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6.1 Academic Licence holders may receive updates at Licensor's sole discretion and are not entitled to dedicated support unless expressly agreed in writing.

6.2 Commercial Licence holders will receive software updates and maintenance releases during the term of their licence, subject to the support tier specified in their Order Form.

6.3 Licensor reserves the right to modify, discontinue, or alter features of the Software at any time. Licensor will use reasonable efforts to provide notice of material changes to Commercial Licence holders.

7. Term and Termination

7.1 Academic Licences are granted for an initial term of one (1) year and shall automatically renew on an annual basis unless terminated in accordance with this Section.

7.2 Commercial Licences commence on the Effective Date and continue for the term specified in the applicable Order Form, unless earlier terminated.

7.3 Either party may terminate this Agreement immediately on written notice if the other party: (a) commits a material breach that is not remedied within thirty (30) days of written notice; or (b) becomes insolvent, enters administration, liquidation, or bankruptcy proceedings.

7.4 Licensor may terminate an Academic Licence immediately and without notice if Licensee uses the Software for Commercial Use or otherwise breaches Section 3.

7.5 Licensor may terminate this Agreement immediately if Licensee infringes or threatens to infringe Licensor's intellectual property rights.

7.6 Upon termination or expiry of this Agreement, Licensee shall: (a) immediately cease all use of the Software; (b) uninstall and delete all copies of the Software from Licensee's systems; and (c) certify in writing to Licensor that such steps have been completed if requested.

7.7 Sections 4, 5, 7.6, 8, 9, and 11 shall survive termination or expiry of this Agreement.

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9.3 Nothing in this Agreement shall limit or exclude liability for: (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; or (c) any other liability that cannot be limited or excluded by applicable law.

10. Data Protection

10.1 Each party shall comply with applicable data protection laws, including the EU General Data Protection Regulation ("GDPR") and any applicable national implementing legislation, in connection with its use of the Software.

10.2 To the extent that Licensor processes any personal data on behalf of Licensee in connection with the provision of support services, the parties shall enter into a separate data processing agreement.

11. General Provisions

11.1 Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of France, without regard to its conflict of law principles. The parties submit to the exclusive jurisdiction of the Commercial Court of Villefranche-sur-Saône for the resolution of any disputes arising under or in connection with this Agreement.

11.2 Entire Agreement

This Agreement, together with any applicable Order Form, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements, representations, and understandings relating thereto.

11.3 Amendments

Licensor may update this Agreement from time to time. For Academic Licences, continued use of the Software after notice of an updated Agreement constitutes acceptance. For Commercial Licences, material changes require written consent of both parties.

11.4 Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

11.5 Waiver

Failure by either party to enforce any provision of this Agreement shall not constitute a waiver of that party's right to enforce such provision in the future.

11.6 Assignment

Licensee may not assign or transfer this Agreement or any rights or obligations hereunder without Licensor's prior written consent. Licensor may assign this Agreement in connection with a merger, acquisition, or sale of all or substantially all of its assets. Any purported assignment in violation of this Section shall be void.

11.7 Export Compliance

Licensee shall comply with all applicable export control and sanctions laws and regulations. Licensee shall not export or re-export the Software to any country, entity, or individual in violation of such laws.

11.8 Notices

Any notices under this Agreement shall be in writing and delivered by email (with read receipt or confirmation of delivery) or by registered post to the addresses specified in the applicable Order Form or as otherwise notified in writing.

Licence Types Summary

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Fee	Free	Paid (per Order Form)
Eligible users	Academic / non-profit researchers	Any organisation
Commercial use	Not permitted	Permitted (as per Order Form)
CRO / pharma / clinical use	Not permitted	Permitted
Number of users	Named individual only	Per seat / site (Order Form)
Support	Community / best-effort	Dedicated (per support tier)
Updates	Discretionary	Included during licence term
Term	1 year, auto-renewable	As per Order Form

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